

HOUSE BILL 219

By Reedy

AN ACT to amend Tennessee Code Annotated, Title 66,
Chapter 2, Part 3, relative to property.

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF TENNESSEE:

SECTION 1. Tennessee Code Annotated, Title 66, Chapter 2, Part 3, is amended by
adding the following as a new section:

(a) As used in this section:

(1) "Commissioner" means the commissioner of agriculture or the
commissioner's designee;

(2) "Foreign person", as defined under the federal Agricultural Foreign
Investment Disclosure Act (7 U.S.C. § 3501 et seq.), means:

(A) An individual:

(i) Who is not a citizen or national of the United States;

(ii) Who is not a citizen of the Northern Mariana Islands or
the Trust Territory of the Pacific Islands; or

(iii) Who is not lawfully admitted to the United States for
permanent residence, or paroled into the United States, under the
federal Immigration and Nationality Act (8 U.S.C. 1101 et seq.);

(B) A person, other than an individual or a government, which is
created or organized under the laws of a foreign government or that has
its principal place of business located outside of all the United States;

(C) A person, other than an individual or a government:

(i) Which is created or organized under the laws of any state; and

(ii) In which, as determined by the United States secretary of agriculture, under regulations the secretary shall prescribe, a significant interest or substantial control is directly or indirectly held:

(a) By an individual referred to in subdivision

(a)(2)(A);

(b) By a person referred to in subdivision (a)(2)(B);

(c) By a foreign government; or

(d) By any combination of such individuals,

persons, or governments; or

(D) A foreign government; and

(3) "Person" includes an individual, corporation, company, association, firm, partnership, society, joint stock company, trust, estate, or other legal entity.

(b) A foreign person required to make a report to the United States department of agriculture under the federal Agricultural Foreign Investment Disclosure Act, shall also file a copy of the required report with the commissioner within the time period required under the federal Agricultural Foreign Investment Disclosure Act .

(c) The commissioner shall notify the attorney general and reporter of a foreign person's failure to file a copy of the report as required under subsection (b), whereupon the attorney general and reporter:

(1) Shall impose a civil penalty not to exceed twenty-five (25%) of the fair market value, on the date of the assessment of the penalty, of the interest in the

agricultural land for such failure to file the report with the commissioner as required under subsection (b); and

(2) May bring action to collect the civil penalty in the circuit court of any county in which any portion of the agricultural land acquired is located.

(d)

(1) This section expires upon the repeal of the federal Agricultural Foreign Investment Disclosure Act.

(2) The commissioner shall notify the executive secretary of the Tennessee code commission in writing of the repeal of the federal Agricultural Foreign Investment Disclosure Act.

SECTION 2. The commissioner of agriculture is authorized to promulgate rules to effectuate this act. The rules must be promulgated in accordance with the Uniform Administrative Procedures Act, compiled in Tennessee Code Annotated, Title 4, Chapter 5.

SECTION 3. For the purpose of promulgating rules, this act takes effect upon becoming a law, the public welfare requiring it, and applies to reports made to the United States department of agriculture on or after July 1, 2025.